

Chapter – 15A

INCIDENTS AND INVESTIGATIONS

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15A.1 PURPOSE

The purpose of this procedure is to ensure that a formalized system exists for reporting of the incidents (includes near misses), investigation of incidents, for carrying out an analysis of the incidents, for implementing corrective action and for sharing the lessons learnt from the incident/near miss with all concerned by sending broadcasts.

Incident investigation has the primary purpose of preventing further incidents through identifying the causes and lessons learnt to prevent recurrences by putting the safeguards in place.

15A.2 SCOPE

This procedure applies to:

- Any casualty, accident or a serious incident involving a vessel managed by Company.
- All incidents involving any person on articles of agreement on Company managed vessels whether on-board, ashore or accessing the vessel.
- Incident involving any contractor including shipyard workers, visitors, or office personnel while on board or accessing the vessel.

15A.3 RESPONSIBILITY

The Master is responsible for the timely reporting of all incidents and near misses to the office and for the on-board investigation of the incident.

The Master shall also submit a root cause analysis for the incident or near miss report as applicable.

The respective Marine Manager or his designate shall analyse the severity and nature of the incident reported by the vessel and review the corrective measures arising from the incident. He shall review the root cause and the corrective action plan submitted by the Master and update/amend the same if required. The incident/near miss shall only be closed out after the Master's final confirmation on the implementation of the corrective action plan. He shall determine if immediate information needs to be sent to the fleet.

The Marine Superintendent will be responsible for collecting information and preparing the incident report bulletin.

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The respective Marine Manager or his designate is responsible for monitoring the effective disposition of the non-conformance as a consequence of the incident or near miss.

15A.4 CLASSIFICATION OF INCIDENTS (EXCEPT NEAR MISSES)

In deciding the category of an incident, the “Potential”, as well as the “Actual” consequence, must be considered. Personal injury should be the first consequence to be evaluated. This will take precedence over the other types of losses or damages.

The decision on the classification of the incident must be made within 24 hours of the incident to ascertain the follow-up actions set according to incident classification.

15A.5 INCIDENT LOSS CLASSIFICATION MATRIX

INCIDENT CATEGORY	LEVEL 1: MINOR	LEVEL 2: MARGINAL	LEVEL 3: SUBSTANTIAL	LEVEL 4: CRITICAL	LEVEL 5: CATASTROPHIC
INJURY	First Aid Case	RWC, MTC	LWC	Permanent total disability (PTD), Permanent partial disability (PPD)	Fatality
ENVIRONMENT DAMAGE	Failure of Primary containment. Spill contained on deck. Liquid Spill quantity less than or equal to 1 BBL	Failure of Primary containment. Spill contained on deck. Spill quantity greater than 1 BBL. OR Uncontrolled release of toxic gases less than	Spill into sea less than or equal to 1 barrel OR Uncontrolled release of toxic gases greater than 1 m3 and less than or equal to 10m3. (or	Spill into sea greater than 1 bbl and less than or equal to 10 barrels. OR Uncontrolled release of toxic gases greater than 10m3 and less than or equal to 50	Major spill greater than 10 Bbls into the sea OR Uncontrolled release of toxic gases greater than 50m3 (or equivalent in ton)

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		and equal to 1 m3 (or equivalent in ton) OR Emission of SOx gases for more than 1-hour duration after EGCS failure **	equivalent in ton)	m3. (or equivalent in ton).	
ASSET / PROPERTY LOSS*	Damage to own or external property with estimated actual cost up to to 10,000 USD.	Damage to own or external property with estimated actual costing between 10,000 and 100,000 USD.	Damage to own or external property with estimated actual cost between 100,000 and 1000,000 USD.	Damage to own or external property with estimated actual costing between 1000,000 and 3000,000 USD.	Damage to own or external property with estimated actual costing more than or equal to 3000,000 USD
DISRUPTION TO BUSINESS	Notable interruption, disturbance or deviation from normal functioning leading to significant consequences. No LOP or notice received.	LOP issued to vessel for not meeting charter party requirements, excluding off-hire.	Off Hire of any vessel	Fleetwide ban by charterer	Loss or suspension of DOC
REGULATORY COMPLIANCE	Verbal warning or official complaints from	Written warnings or official complaints from	Vessel Detention by Port state control	An investigation by authorities results in	An investigation by authorities resulting in severe

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	authorities for regulatory non-compliance	authorities for regulatory non-compliance. Minor vessel sanctions ie: restriction on vessels for entering the port for the specified duration. Fines on vessel imposed by authorities.		moderate penalties or sanctions on the Company i.e.: fleetwide restriction on calling a country/port for a specified duration.	penalties or sanctions on Company i.e.: prohibition on trading for a specified duration.
REPUTATION DAMAGE	No Coverage	Regional or local coverage	National media attention.	International industry media attention.	International mainstream media attention.
SECURITY INCIDENTS	Unsuccessful attempted of theft Unauthorized boarding Loss of security passes	Theft incident where property value was < USD 5000 Cyber Attacks	Stowaway onboard, Theft incident where property value was > USD 5000 Unsuccessful hijack attempt.	Ship used for smuggling, sabotage, and criminal attempt.	Vessel Hijacking Bomb or terror attack

Guidance Notes:

* Asset / Property loss: The cost referred to in this section is the cost incurred for repairs, technicians, spare parts used and inspections/surveys. Variable service costs such as tuggage, salvage, external consultants and legal liability are to be ruled out for loss classification determination.

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** Emission of SO_x gases – Applicable when SO_x emission is not meeting the standard due to EGCS malfunction.

15A.6 RESTRICTIONS ON THE CLASSIFICATION OF THE FOLLOWING INCIDENT:

Fire & Explosion {Includes smoke, smouldering (electrical), actual fires anywhere onboard where we have open flames, fires caused by hydrocarbon releases (oil on hot surface), incinerator rooms, on deck, etc.}	Level 3 and above
Navigation incident (Grounding, allision and collision)	Level 3 and above
Mooring failures	Level 2 and above
Blackout	Level 3 and above
Propulsion failure (Including inadvertent auto slowdown)	Level 2 and above
Steering failure	Level 3 and above
Cargo contamination	Level 3 and above
Hull breach	Level 3 and above
Man overboard	Level 3 and above
Flooding	Level 2 and above
Loss of vessel stability	Level 3 and above

15A.7 CLASSIFICATION DETERMINATION:

The final categorization of the incident shall be in accordance with the above matrix based on the actual losses incurred. However, potential learnings from the incident shall also be considered while determining the composition of the investigation team.

Most stringent classification categories shall be chosen when a accident incident results in multiple losses. The Marine Manager, in consultation with the Technical Manager, is responsible for determining the appropriate incident category.

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As per the area of concern, incidents may be further categorised as below

Environment al incidents	Fire	Injuries	Navigat- ion incident	Mooring FAILURE	Technical Incidents	Cargo handlin g incident	Cargo System FAILUR E	Critical safety equipmen t FAILURE (critical system includes the following)	Critical Navigatio n equipmen t FAILURE	Pollution preventi on equipme nt failure	Structural FAILURE	Securi ty	Flood -ing	Loss of vessel stab- ility	Alleged violation of internation al regulation ie: MARPOL / COLREG
Oil spill Overboard	Fire of any magnit ude	All sort of injury	Allision with or without damage	Damage to windlass restricting the ability to recover anchor without repairs	Loss of power***	Cargo contami nation	Cargo line failure	Fix the firefightin g system	BNWAS	OWS	Accommo dation structure & fittings damage	Piracy			
Chemical spill overboard		Mediva c	Collision with or without damage	Mooring winch and associated machinery failure	Boiler failure		Cargo pump failure	Lifeboat/R escue boat	Radars	Sewage treatmen t system	Cargo space & fittings damages	Stowa ways			
Breach of primary containment - Cargo		Missing person	Groundin g- hard groundin	Mooring structure/ fitting failure	Total loss* or partial loss** of propulsion		Cargo valves defect	Emergenc y fire pump	ECDIS	ODME	Main deck & fittings damages	Theft			

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			g, touched bottom, suspected of touching the bottom												
Breach of Primary containment - Bunker				Mooring line failure	Steering failure (even momentarily)		Cargo heating system failure	Emergency Generator	SSAS	EGCS	Engine room structure & fittings damages	Hijacking			
Breach of primary containment - Hydraulic Oil				Mooring loose gear failure	Bow or stern thruster failure		Cargo Crane failure while in use	Life rafts	Echo sounder	Ballast water treatment system	Forecastle structure & fittings damage	Sabotage			
Toxic vapour release				Loss of anchor and / or Chain			Cargo conditioning plant failure	Lifebuoys			Cargo hold/tanks structure & fittings damage	Cyber attack			
Cargo vapour release for gas carrier				Fouling of anchor and chain			Ballast line failure	Lifejackets			Ballast tank structure & fittings damages	Smuggling			

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Other MARPOL or any violation of local environment prevention regulation				A breakout from the berth resulting in vessel out of the working envelope of hoses or loading arm			Ballast pump failure	Immersion suit			Void/cofferdam space structure & fitting damages				
Contamination of ballast water by hydraulic oil							Ballast valves defect	Fire main system and fire hoses			Any other hull plating damage				
							Securing arrangement failure	Fireman outfit			Accommodation ladder hoisting wire failure				
							Water ingress detection system failure	Pyrotechnics							

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							Cargo crane failure	Fire/smoke detection system							
								Dead man alarm system							
								Bilge alarm system							

Note: Incidents classified in the above table shall be reported in “Incident” module in Company ERP tool.

* Total Loss of propulsion: The main propulsion unit shut down without warning, even momentarily.

** Partial Loss of propulsion: The vessel needed to slow down or stops for repair or reset equipment to regain full manoeuvrability and / or power.

*** Loss of power: The main generating plant stopped providing electrical power to the main switchboard, even momentarily.

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15A.8 NEAR MISS:

For Near Miss reporting, the risk assessment matrix shall be used to determine the potential risk level. The potential risk identified shall define the category of the near miss. The classification of near misses shall be carried out as per the table below:

Potential risk category	Near miss category	Detailed investigation report (out of Company ERP tool) required
Very High	Category 5	Yes
High	Category 4	Yes
Medium	Category 3	No
Low	Category 2	No
Very Low	Category 1	No

Navigational Near Miss shall be classified as category **3** and above.

The respective QHSE Superintendent in liaison with SMT is responsible to review & decide the category of near miss.

Near miss reports shall be reviewed and **investigated** for the presence of potential danger and the lessons to learn. The review of near miss analysis shall be sent to the vessels as a lesson learnt.

15A.9 REPORTING OF INCIDENTS

Reporting Matrix		
Activity	Master's Communication Responsibility	Office Communication Responsibility
Accident Losses (Accidents/Damages/Injury/Disruption to Business/ Regulatory Non-compliance)	Refer to the contingency manual for the classification of contingency and Reporting timelines.	Refer to the contingency manual for roles & responsibilities of duty superintendent and setting up of the crisis management

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	Corresponding actions that may include:	team. The crisis team shall monitor the progress of the activity and provide suggestions and assistance to handle the crisis.
	• Initial notification. • Recording of events. • Contingency handling. • Drug and alcohol testing. • Interaction with media.	
	Continuously update the Crisis Management team on further developments. The update interval must not exceed 6 hours.	
	Report to port and Flag State as per advice from the Office. Flag state Accident Notification Forms to be used.	Advise vessel with Flag state reports and reports to Coastal state authorities.
	Report to Charterers. Initial reporting and subsequent updates shall be given as per the charterer's instructions and voyage orders.	The crisis management team shall liaise with charterers. They will advise the vessel with reports to authorities.
	The initial report has to be made within 24 Hours of occurrence. This report can be sent to the office through Company ERP tool, email or phone.	The accident should be analyzed, and all stakeholders updated accordingly.
	Send an Accident/Damage/ Injury report through the ship palm or using the prescribed form (if Company ERP tool is	The accident should be analyzed, and all stakeholders updated accordingly.

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	not available) soon after the resumption of normal operation but not later than 72 hours from the incident occurrence.	
Near Miss	Refer to the contingency manual for notification requirement for Category 4 and 5 near miss. As early as practicable, but not later than 72 hours of occurrence in Company ERP tool.	Near Miss to be analyzed and investigated.

The below-mentioned matrix establishes the Company requirement for reporting **accidents** and their investigation reports to third parties.

Accident Category	Recipients					
	Vessel Charterer	Oil Major vetting departments	OCIMF and other industry bodies	Flag	Class	Owners
Level 1 - Minor	No	No	No	No	If applicable	No
Level 2 - Marginal	Yes	No	When accident potentially could have aggravated to critical or catastrophic category	No	If applicable	Yes
Level 3 - Substantial	Yes	Yes	When accident potentially could have aggravated to critical or catastrophic category	Yes	If applicable	Yes

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Level 4 - Critical	Yes	Yes	Yes	Yes	Yes	Yes
Level 5 - Catastrophic	Yes	Yes	Yes	Yes	Yes	Yes

Furthermore, specific requirements outlined by charters shall be adhered.

Near-miss incidents categorised as 4 and 5 must be reported to the vessel charterers. Additionally, compliance with flag state reporting requirements for near-miss incidents is mandatory.

The process of incident reporting shall be conducted in accordance with the requirements specified by the recipients. They shall be followed until the closure of the incident is confirmed by their end.

15A.10 URGENT NOTIFICATION TO THE FLEET

The QHSE Manager shall ensure that the fleet alert is released as early as possible but not later than 72 hours from the **accident** occurrence. The stringent Charterer's instruction on the timeline for the release of fleet alert (if any), will supersede the mentioned Company's guidelines.

Below mentioned table shall be adhered for determining the release of fleet alert

Accident category	Fleet alert required
Level 5: Catastrophic	Yes
Level 4: Critical	Yes
Level 3: Substantial	Yes (Basis review by the QHSE Team)
Level 2: Marginal	No
Level 1: Minor	No

Follow up actions by the vessels on receipt of fleet alert are listed in the HSM manual

15A.11 FORMS FOR REPORTING

All incidents shall be reported to the office appropriately. The report shall be completed and sent through Company's ERP tool or using the alternate prescribed format as advised in the SMS.

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15A.12 INCIDENT INVESTIGATION TRAINING

INVESTIGATION TRAINING FOR OFFICE STAFF

The investigation shall always be headed only by suitably qualified investigator.

At office, as far as possible, the staff that form part of the investigation team shall be duly trained in Incident Investigation methodology. At least one senior staff should be trained by the External agency who developed the incident investigation model or by a suitable Classification Society. He in turn, may, train the other superintendents and the vessel staff. Trained superintendents should be given opportunity to participate in the investigation if relevant to the skill before expected to lead an investigation.

The Incident Investigation training shall be refreshed at a period not more than 5 years.

INVESTIGATION TRAINING FOR SHIP STAFF

Training shall be provided to the senior officers on-board on incident investigation methods.

This may be done in shore-based seminars, specific training by the office or on-board training session.

Pre-joining briefing may also be effectively utilized to carry out the incident investigation course for seafarers.

The Company shall ensure that at any time, at least two seafarers on-board should have been trained in an Incident Investigation.

Refresher course for an Incident investigation shall be provided for the team at a period not more than 5 years.

15A.13 INCIDENT INVESTIGATION TEAM

INCIDENT INVESTIGATION TEAM OFFICE AND SHORE:

Incident investigation team on-board shall consist of the Master, Chief Officer (Safety Officer), Chief Engineer and Second Engineer. The Master shall lead the on-board investigation team. If the Master is directly connected with the incident, the Chief Engineer or Safety Officer shall lead the team.

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The Marine Manager in consultation with the QHSE manager shall select the investigation team, lead investigator, and ensure that the person leading the investigation is not connected with the incident. External consultants, experts and representations from owners shall be sought as required. The table below illustrates the responsibilities for the incident investigation.

Incident category	Investigation team	Investigation team lead	Responsibility for investigation report writing	Investigation approval
Level 5: Catastrophic	Environment case –QHSE Manager, Marine manager, Technical Manager, DPA, MSI and/or TSI, EMS Supt, External resource. Other case - QHSE Manager, Marine manager, Technical Manager, DPA, MSI and /or TSI, QHSE Supt, External resource.	QHSE Manager	QHSE Manager	DOC head
Level 4: Critical	Environment case – QHSE Manager, EMS Superintendent, Marine Manager, Technical Manager, DPA, MSI and/or TSI, EMS Supt, External resource. Other case - QHSE Manager, Marine Manager, Technical Manager, DPA, MSI and/or TSI, QHSE Supt, External resource.	QHSE Manager	QHSE Manager	DOC head
Level 3: Substantial	Injury, Fire - Marine Manager, Technical Manager, MSI, TSI, QHSE Supt. Environment Case - Marine Manager, Technical Manager, MSI, TSI, EMS Supt. Other Cases - Marine Manager, Technical Manager, MSI, TSI, QHSE Supt.	Marine or Technical Manager	Injury, Fire - QHSE supt. Other Cases - MSI and/or TSI	Injury & fire - QHSE Manager. Environment cases - QHSE Manager. Other cases - Marine or Technical Manage.
Level 2: Marginal	Injury, Fire - Marine Manager, Technical Manager, MSI, TSI, QHSE Supt. Environment cases - Marine Manager, Technical Manager, MSI, TSI, EMS Supt. Other Cases - Marine Manager,	Marine or Technical Manager	Injury, Fire - QHSE supt. Other Cases - MSI and/or TSI	Injury & Fire - QHSE Manager. Environment cases – QHSE Manager. Other cases - Marine or

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	Technical Manager, MSI, TSI, QHSE Supt			Technical Manager.
Level 1: Minor	Vessel's Senior officer, MSI and/or TSI	MSI or TSI	Vessel and MSI and/or TSI	MSI and/or TSI

15A.14 STAGES OF INCIDENT INVESTIGATION

The first stage in the investigation involves establishing factual information. This requires recording and observation of all activities at the time and scene of the incident.

Once the incident is under control, the Master and on-board investigation team shall carry out a methodical investigation of the incident to determine the causes and appropriate corrective measures to prevent recurrence.

The investigation will require the observation and collection of all relevant information, which may include but is not limited to:

- Photographs
- Sketches
- Statements from persons involved in the incident and any witnesses
- Operational records
- Logbooks
- Checklists
- Permits
- Maintenance records
- Test records
- Certificates
- Data printouts
- Record of rest hours
- Saved Data Records (e.g. VDR, ECDIS Backup)
- D&A Tests
- CCTV
- Evidence from VTS

The second stage is to analyse the facts and make a judgment on the direct, indirect and root causes.

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An Incident investigation process shall primarily follow the Loss causation model (identifying direct causes, indirect causes, and root causes) with the help of events and Conditional factor charting or events and causal factor charting, human factor analysis and barrier analysis. The Taproot model may alternatively be used in cases that indicate long pre-existing conditions with a potential to evolve as a causal factor.

However, depending on the incident the head of the investigation team in consultation with the QHSE manager shall decide on the various tools to be adopted as relevant to the incident and investigation process.

The gathered evidence and the facts of the incident should lead to the determination of direct, indirect and root causes and thereafter, to the derivation of corrective measures to prevent recurrence.

If necessary, an Event and Causal Charting should be done to depict the events in logical sequence and to analyse the event by identifying various unsafe conditions and unsafe acts that existed/contributed to the event.

The identification of causes follows a process of asking a series of questions such as, "why did it happen?".

- a) The first 'why' or on occasion, 'how' question will provide the direct cause(s). The direct causes may be an "unsafe act", or a normal act carried out like an "unsafe condition" or the combination of both.
- b) The second 'why' question seeks to understand why the direct cause(s) happened. The answers will provide the indirect cause(s). Usually these are the jobs and personal factors that exist.
- c) In the final stage, questioning why the indirect cause(s) occurred will lead to the root cause(s), which are always non-compliances with procedures/rules/regulations/industry best practice/proper design standards or at times, lack of a procedure/regulation/knowledge/training, etc.

A near miss of serious nature will be managed similar to an accident in the identification of causes and corrective measures.

The third stage is to recommend actions to ensure, as far as possible, that the incident will not or is less likely to happen again. Each of the identified root causes should now be used to develop an appropriate corrective measure that will address the lapse and prevent its recurrence.

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All incidents involving the ship/shore interface shall, whenever possible be investigated by both the parties involved. Whenever this is considered impracticable, the minimum action required subject to the draft copy of a completed investigation report shall be made available to the other party.

15A.15 INCIDENT INVESTIGATION REPORT

The investigation report should be completed as soon as possible with all the facts and relevant information. Statements from participants and witnesses should be used to establish the facts.

Every possible effort shall be taken to ensure that the report is full of facts as this report assists to identify the root causes and thereby efficient corrective action.

The Company's incident investigation template is available as a guide and reference for the users preparing incident investigation reports.

The detailed Incident Investigation report (additional to the Company ERP tool reporting structure) shall be prepared by the relevant investigation team for all incidents above the 'minor' category.

The time duration allowed for the completion of the investigation shall be reviewed until all issues are addressed and resolved. The final report is completed as soon as practicable. However, the report shall be completed within 90 days from the date of the accident unless a different time scale has been decided by the investigation team. The Marine Manager is responsible for approving all extensions for the completion of the incident investigation.

The incident report should include the time scale & the person responsible for closing out the proposed Corrective/Preventive Action. The investigation report is to state the following at the bottom of the report:

'Report should not be written with litigation in mind and, shall be inadmissible in any judicial proceedings whose purpose, or one of whose purposes is to attribute or apportion liability or blame.'

15A.16 REVIEW OF REPORT

The report shall be reviewed to confirm that it is adequately investigated, analysed, categorised and sound recommendations made. The review shall ensure that the investigation has fully explored the possible causes and identified appropriate action to prevent a recurrence.

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It is important that suggested corrective action, should be such that, it does not generate a new hazard in the system. Hence, if necessary, a risk assessment shall be carried out prior to implementing the suggested corrective action.

15A.17 ACTION PLAN AND FOLLOW UP

- a) The Operations & Technical team is responsible for ensuring the corrective actions are documented, tracked, and closed out. The incident report shall be uploaded in Company ERP tool along with PIC and target dates for closeouts assigned and closeouts verified.
- b) The Master is responsible for effective close out of the identified corrective and preventive action onboard within the given time frame.
- c) Any extension to the corrective and preventive action requires the superintendent's approval.

15A.18 SHARING OF LEARNINGS

As a part of learning and preventive actions, the Company shall share the incident and conclusion from the investigation, with fleet vessels and appropriate office staff through safety broadcasts as per the table below:

Incident category	Learning from the incident required
Level 5: Catastrophic	Yes (Safeguard/Reflections)
Level 4: Critical	Yes (Safeguard/Reflections)
Level 3: Substantial	Yes (Safeguard/Reflections)
Level 2: Marginal	Selective, basis review by the QHSE team
Level 1: Minor	No

Learnings from the serious near miss will be shared through 'Reflection' monthly safety magazine.

The Master shall discuss the safety broadcasts with all crew so that similar incidents are prevented.

15A.19 TREND ANALYSIS

The incidents including near miss shall be reviewed in the management review to identify a suitable action plan shall be derived to avoid/minimise the losses in future.

While conducting risk evaluation in relation to the management of occupational safety and health, appropriate statistical information shall be referred to from the ships and from general statistics provided by the Flag state.

Trend analysis must also be carried out for defective navigation equipment.

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15A.20 RECORDS:

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